

23NWCV01526 23NWCV01526

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Case Number: 23NWCV01526 Hearing Date: July 9, 2026 Dept: P

TRAVIS WELLARD v. KALEEN JIMENEZ GUZMAN

CASE NO.: 23NWCV01526

HEARING: 07/09/2026 @ 9:30 AM

#11

TENTATIVE ORDER

I.

Plaintiff Travis Wellard's motion for terminating sanctions is GRANTED IN PART and DENIED IN PART.

II.

Plaintiff's request for terminating sanctions, issue sanctions, and evidentiary sanctions is DENIED without prejudice.

III.

Plaintiff's request for monetary sanctions is GRANTED in the amount of \$1,000 against Defendant.

Moving party to give notice.

Plaintiff Travis Wellard (Plaintiff) moves for an order issuing terminating, issue, evidentiary, and monetary sanction against pro per Defendant Kaleen Jimenez Guzman (Defendant).

Background

On May 16, 2023, Plaintiff filed this action against Defendant and Does 1 to 100, inclusive. The complaint alleges that “[o]n or about May 28, 2021, Plaintiff and his companion were walking near Lakewood Blvd. & Ramona St. when Defendant...abruptly stopped her vehicle directly front of them and all occupants exited the vehicle and aggressively approached Plaintiff and his companion. Defendants...and DOES 1 through 5, suddenly and without warning, physically attacked and assaulted Plaintiff with such force that Plaintiff suffered injuries and damages.” (Complaint, ¶ 6.) The complaint asserts four causes of action: (1) assault, (2) battery, (3) intentional infliction of emotional distress, and (4) negligence.

On October 8, 2025, the Court granted Plaintiff’s motions to compel discovery responses from Defendant to form interrogatories (FROGs), set one; special interrogatories (SROGs), set one; requests for production of documents (RPDs), set one; and motion to deem requests for admissions (RFAs), admitted.

On December 17, 2025, the Court granted Plaintiff’s ex parte application to continue the trial date from January 21, 2026 to July 20, 2026.

On June 11, 2026, this motion first came on for hearing. The Court continued the hearing on this motion to today’s date after identifying a potential error in the proof of service. The Court stated: “Counsel for Plaintiff is advised to file a declaration by July 6, 2026 detailing whether actual notice occurred.” (Order, 6/11/26.)

On June 29, 2026, Plaintiff submitted a Notice of Proof of Service of this motion.

Legal Standard

If a party fails to comply with a court order compelling discovery responses or attendance at a deposition, the court may impose monetary, issue, evidence, or terminating sanctions. (Code Civ. Proc., §§ 2023.010, subd. (g); 2030.290, subd. (c); 2023.030; *R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 495.) Ultimate discovery sanctions are justified where there is a willful discovery order violation, a history of

abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. (Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.) “[A] penalty as severe as dismissal or default is not authorized where noncompliance with discovery is caused by an inability to comply rather than willfulness or bad faith.” (Brown v. Sup. Ct. (1986) 180 Cal.App.3d 701, 707.)

Under Code of Civil Procedure section 2023.030, subd. (d),
“The court may impose a terminating sanction by one of the following orders:

(1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.

(2) An order staying further proceedings by that party until an order for discovery is obeyed.

(3) An order dismissing the action, or any part of the action, of that party.

(4) An order rendering a judgment by default against that party.”

“The trial court may order a terminating sanction for discovery abuse ‘after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.’” (Los Defensores, Inc. v. Gomez (2014) 223 Cal.App.4th 377, 390, quoting Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.)

Discussion

Plaintiff moves for an order issuing terminating sanctions against Defendant by an order rendering judgment by default against Defendant or, alternatively, striking Defendant’s answer to the complaint and allowing Plaintiff to pursue a default judgment. This motion is unopposed.

Plaintiff argues that Defendant failed to comply with the Court’s Order on October 8, 2025. On October 8, 2025, the Court ordered Defendant to serve verified responses, without objections, to FROGs, set one;

SROGS; set one; and RPDs, set one within 30 days of this Order. (Order, 10/8/25.)

The Court additionally ordered Defendant to pay \$2,100 in monetary sanctions within 30 days of the Order. (Order, 10/8/25.) Plaintiff states that since then, “Defendant has not served any discovery responses, has not paid the ordered sanctions, and has not requested relief from the court or communicated in any way with Plaintiff’s Counsel.” (Bath Decl., ¶ 7.)

Plaintiff argues that this is not a matter of incomplete responses, delays, or technical deficiencies, rather, Defendant has completely avoided her discovery obligations. Plaintiff argues that while the trial date has been continued to July of 2026, Defendant’s conduct has prevented Plaintiff from being able to prepare for trial.

Plaintiff argues that Defendant’s conduct is like that of R.S. Creative, Inc., *supra*, 75 Cal.App.4th 486 or Lang, *supra*, 77 Cal.App.4th 1225 in which terminating sanctions were upheld. However, R.S. Creative, Inc. is a spoliation of evidence case, and there are no arguments that Defendant committed spoliation of evidence here. (R.S. Creative, Inc., *supra*, 75 Cal.App.4th at p. 496-97.) Similarly, in Lang, the Court of Appeal affirmed terminating sanctions after a party did not respond to discovery after getting extensions, claimed that it fully complied with discovery requests when it did not, did not respond to discovery after working with a discovery referee, and faced progressively increasing sanctions. (Lang, *supra*, 77 Cal.App.4th at p. 1246-47 [noting that the “[trial court and the referee conducted many hearings and afforded...numerous opportunities to comply with their orders.”].)

Here, Plaintiff does not provide the Court with enough information to make a finding of willfulness. Plaintiff does not describe any informal attempts to communicate with Defendant regarding the outstanding discovery. This is notable considering the potential discrepancies regarding the proofs of service. Plaintiff also does not cite any repeated violations—Plaintiff only notes the failure to respond, the Order, and that Plaintiff has not complied with the Order. (Bath Decl., ¶¶ 5-7.) Therefore, at this time, the Court does not find that Plaintiff establishes willfulness sufficient to justify a default judgment or order striking Defendant’s answer.

The Court notes that Plaintiff requests issue or evidentiary sanctions in the alternative. However, Plaintiff does not file a separate statement. (Cal. Rules of Court, rule 3.1345(a)(7) [separate statement required

for a motion for issue or evidentiary sanctions].)

The Court finds monetary sanctions warranted at this time. Code of Civil Procedure section 2023.030, subdivision (a) permits monetary sanctions reflecting the “reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct.”

Plaintiff request \$3,000 in monetary sanctions “in connection with the preparation, filing, and hearing on this Motion in the sum of \$3,000.00.” (Mot., 10:15-16.) However, Plaintiff does not put forth Plaintiff's counsel's hourly rate or hours spent as a result of this conduct. The Court therefore cannot determine whether \$3,000 is reasonably incurred.

The Court therefore finds monetary sanctions in the amount of \$1,000 against Defendant warranted.

The Court recognizes the upcoming trial date. Plaintiff is not foreclosed from requesting a trial continuance.

Accordingly, Plaintiff's motion for terminating sanctions is GRANTED IN PART and DENIED IN PART.

Plaintiff's request for terminating sanctions, issue sanctions, and evidentiary sanctions are DENIED without prejudice.

Plaintiff's request for monetary sanctions is GRANTED in the amount of \$1,000 against Defendant. Defendant is ORDERED to pay this amount by July 20, 2026.